

25VECV03512 25VECV03512

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV03512 Hearing Date: July 8, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

REZA ALIEE and FERESHTEH TAHERI,

Plaintiffs,

vs.

FCA US LLC; RYDELL CHRYSLER DODGE JEEP RAM; and
DOES 1 through 10, inclusive,

Defendants.

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CASE NO.: 25VECV03512

ORDER

GRANTING DEFENDANT

FCA US LLC'S NOTICE OF MOTION AND MOTION FOR COMPLIANCE PURSUANT TO CODE OF
CIVIL PROCEDURE § 871.26

I.

BACKGROUND

This is a
lemon law action. Plaintiffs Reza Aliee and Fereshteh Taheri ("Plaintiffs")
bring this action against Defendant FCA US, LLC ("FCA") in connection with a
2024 Ram 1500 they allegedly purchased and was manufactured with FCA's
defective E-Torque System. (See Compl. ¶¶ 23-27.) Plaintiff also brings a claim for
negligent repair against Rydell Chrysler Dodge Jeep Ram ("Dealer").

Defendant FCA now moves
to compel compliance pursuant to Code of Civil Procedure § 871.26 and requests sanctions.

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II.

PROCEDURAL

HISTORY

On June 25,
2025, Plaintiff filed a Complaint alleging (1) Violation of Subdivision (D) of
Civil Code Section 1793.2[1]; (2) Violation
Of Subdivision (B) Of Civil Code Section 1793.2; (3) Violation Of Subdivision
(A)(3) Of Civil Code Section 1793.2; (4) Breach of the Implied Warranty Of
Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement
Concealment.

On October
21, 2025, FCA filed an Answer.

On December
8, 2025, Dealer filed an Answer.

On
June 10, 2026, FCA filed the instant Motion to Compel Compliance with Code of Civil
Procedure § 871.26.

As of July 7,
2026, no opposition was filed.

III. LEGAL STANDARD

Code Civil
Procedure § 871.26 “only applies to a civil action seeking restitution or
replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., §
871.26(a).) “Within 120 days after the filing of the answer or other responsive
pleading, all parties have the right to conduct initial depositions, each not
to exceed two hours, of the following deponents: (Code Civ. Proc. § 871.26(c).)
Subdivisions (c) (1) and (c)(2) provides as follows:

(c)(1) The
Plaintiff.

(c)(2) The
defendant, and if the defendant is not a natural person, the person who is most
qualified to testify on the defendant's behalf.

IV.

ANALYSIS

Defendant FCA

moves this Court for an order compelling Plaintiffs to appear for a deposition within ten days of the Court's order. According to Code of Civil Procedure § 871.26, all parties have the right to conduct initial depositions within 120 days after the filing of the answer or other responsive pleading. (Code Civ. Proc. § 871.26(c).) FCA sent Plaintiffs emails on several different occasions issuing notices for Plaintiffs to appear for their initial depositions. (See MTC at 3-5.) On each occasion, Plaintiffs served objections to the depositions and stated that Plaintiffs and/or Plaintiff's counsel were unavailable and that Plaintiffs would "meet and confer with Defendant to reschedule the deposition." (See MTC at 4:22-23.) However, after every objection by Plaintiffs, no effort was made to reach out to Defendant and select a date and time that would work for both parties for the depositions. FCA was the only party sending the emails in an effort to try and schedule the depositions, including an additional email sent on May 13, 2026 notifying Plaintiff's counsel that FCA has been seeking Plaintiff's depositions for months and that Plaintiffs had not made an effort to respond. (See MTC at 4:25-27.)

Further, the

statutory deadline to conduct initial depositions was on February 18, 2026. FCA had notified Plaintiffs of the deadline in emails sent prior to February 18, 2026. (See MTC at 4:6-9.) Alongside the statutory deadline to conduct initial disclosures, the summary judgement deadline was on June 15, 2026. Two deadlines have passed since the filing of Defendant FCA's Answer and requests for depositions of Plaintiffs. Plaintiffs have only answered to emails by stating unavailability and have not made any good faith effort to find a date that works for both parties. The only different response other than unavailability to meet was Plaintiff's May 14, 2026 email adding another firm employee to the email chain and requesting that deposition scheduling be addressed to him. (See MTC at 5:3-4.) However, since that email, there has been no efforts made or a response to scheduling yet again.

The Court

finds Plaintiffs have not complied with their initial deposition obligations under § 871.26. Plaintiffs have not made a good faith effort in responding to Defendant FCA's deposition requests as well as communicating their schedule in order to plan said depositions. Under Section 871.26 of the Code of Civil

Procedure, there is no requirement for a meet and confer declaration in support of a motion to compel for initial deposition. Further, Plaintiffs have failed to file any opposition to Defendant's motion, and the deadline for doing so expired on June 24, 2026.

Thus, the
Court GRANTS Plaintiff's Motion to Compel Compliance under § 871.26.

V.
DISCOVERY
SANCTIONS

"Unless the
party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:" (Code Civ. Proc. § 871.26(j).)
Subdivisions (j)(1)-(3) provides as follows:

(j)(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(j)(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(j)(3) For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer.

Defendant FCA requests sanctions in the
amount of \$1,500.00.

According to the Code of Civil
Procedure §871.26 (j)(2), a \$1,500.00 sanction will be granted against the Plaintiff's attorney for failure to comply with the provisions relating to

depositions. (Code Civ. Proc. § 871.26(j)(2).)

Here, Plaintiff's counsel did not comply with deposition provisions due to being unresponsive and not communicating with Defendant FCA about scheduling Plaintiff's depositions. Due to their conduct, both the statutory deadline to conduct initial disclosures and the deadline for summary judgement have passed.

Thus, the Court GRANTS Defendant FCA's request for sanctions in the amount of \$1,500 and orders Plaintiff's counsel to pay Defendant FCA's counsel \$1,500.00 by July 23, 2026.

VI.

CONCLUSION

Based on the foregoing, the Court GRANTS Defendant FCA's Motion to Compel Compliance under § 871.26. Plaintiffs are to comply with initial depositions on or before July 22, 2026.

The Court orders Plaintiff's counsel to pay Defendant FCA's counsel \$1,500.00 in discovery sanctions by July 23, 2026.

IT
IS SO ORDERED.

DATED: July 8, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.